

1 ENGROSSED HOUSE
2 BILL NO. 3008

By: Kendrix of the House

3 and

4 Bergstrom of the Senate

5
6 An Act relating to motor vehicles; amending 47 O.S.
7 2021, Section 759, as last amended by Section 14,
8 Chapter 330, O.S.L. 2025 (47 O.S. Supp. 2025, Section
9 759), which relates to the Board of Tests for Alcohol
10 and Drug Influence; extending sunset date; providing
11 an effective date; and declaring an emergency.

12 BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

13 SECTION 1. AMENDATORY 47 O.S. 2021, Section 759, as last
14 amended by Section 14, Chapter 330, O.S.L. 2025 (47 O.S. Supp. 2025,
15 Section 759), is amended to read as follows:

16 Section 759. A. There is hereby re-created, to continue until
17 July 1, ~~2026~~ 2031, in accordance with the provisions of the Oklahoma
18 Sunset Law, the Board of Tests for Alcohol and Drug Influence to be
19 composed of the following members beginning July 1, 2015:

20 1. The Dean of the Oklahoma State University College of
21 Osteopathic Medicine, or a designee;

22 2. The Dean of the University of Oklahoma College of Medicine,
23 or a designee;

24 3. The Commissioner of Public Safety, or a designee;

1 4. The Director of the Oklahoma State Bureau of Investigation,
2 or a designee;

3 5. The State Commissioner of Health, or a designee;

4 6. The Director of the Council on Law Enforcement Education and
5 Training, or a designee;

6 7. One certified peace officer who is a member of a local law
7 enforcement agency selected by the Oklahoma Sheriffs and Peace
8 Officers Association; and

9 8. One person selected by the Oklahoma Association of Chiefs of
10 Police.

11 Members shall serve without pay other than reimbursement of
12 necessary and actual expenses as provided in the State Travel
13 Reimbursement Act. Each member shall receive an appointment in
14 writing which shall become a permanent part of the records of the
15 Board. The chair and vice-chair shall be elected from the
16 membership of the Board every two (2) years. The Board is
17 authorized to appoint a State Director of Tests for Alcohol and Drug
18 Influence and other employees, including, but not limited to,
19 persons to conduct training and provide administrative assistance as
20 necessary for the performance of its functions, subject to available
21 funding and authorized full-time equivalent employee limitations.
22 The Board may expend appropriated funds for purposes consistent with
23 Sections 751 through 761 of this title and Sections 301 through 308
24 of Title 3 of the Oklahoma Statutes. The Legislature shall

1 appropriate funds to the Department of Public Safety for the support
2 of the Board of Tests For Alcohol and Drug Influence and its
3 employees, if any. Upon the transfer of any employees from the
4 Alcohol Drug Countermeasures Unit of the Department of Public Safety
5 to the Board of Tests For Alcohol and Drug Influence on July 1,
6 2003, all funds of the Unit appropriated and budgeted shall be
7 transferred to the Board, and may be budgeted and expended to
8 support the functions and personnel of the Board.

9 B. The Board is authorized to prescribe uniform standards and
10 conditions for, and to approve satisfactory methods, procedures,
11 techniques, devices, equipment and records for, tests and analyses
12 and to prescribe and approve the requisite education and training
13 for the performance of tests or analyses of breath to determine the
14 breath alcohol concentration. The Board shall establish standards
15 for and ascertain the qualifications and competence of individuals
16 to administer tests and analyses of breath to determine the breath
17 alcohol concentration, and to issue permits to individuals which
18 shall be subject to suspension or revocation at the discretion of
19 the Board. The Board is authorized to prescribe uniform standards,
20 conditions, methods, procedures, techniques, devices, equipment and
21 records for the collection, handling, retention, storage,
22 preservation and delivery of specimens of blood, breath, saliva and
23 urine obtained for the purpose of determining the alcohol
24 concentration thereof or the presence or concentration of any other

1 intoxicating substance therein. The Board may take such other
2 actions as may be reasonably necessary or appropriate to effectuate
3 the purposes of Sections 751 through 761 of this title and Sections
4 301 through 308 of Title 3 of the Oklahoma Statutes, and may adopt,
5 amend and repeal such other rules consistent with this chapter as
6 the Board shall determine proper. The Board is authorized to
7 delegate authority granted in this section to the State Director of
8 Tests as it deems appropriate.

9 C. The Board shall promulgate rules adopting uniform standards
10 and conditions and rules approving devices, equipment, methods,
11 procedures, techniques, and records for screening tests administered
12 for the purpose of determining the presence or concentration of
13 alcohol or any other intoxicating substance in a person's blood,
14 breath, saliva or urine. Such screening tests shall be performed in
15 compliance with the rules adopted by the Board of Tests for Alcohol
16 and Drug Influence. For purposes of this subsection, "screening
17 test" means the use of devices, equipment, methods, procedures,
18 techniques and records by law enforcement officers at roadside to
19 assist in the development of probable cause.

20 D. The Board may set rules and charge appropriate fees for
21 operations incidental to its required duties and responsibilities.

22 E. There is hereby created in the State Treasury a revolving
23 fund for the Board of Tests for Alcohol and Drug Influence to be
24 designated the "Board of Tests for Alcohol and Drug Influence

1 Revolving Fund". The fund shall be a continuing fund, not subject
2 to fiscal year limitations, and shall consist of monies received
3 pursuant to the provisions of subsection D of this section and any
4 funds previously deposited in the Board of Tests for Alcohol and
5 Drug Influence Revolving Fund. All monies accruing to the credit of
6 the fund are hereby appropriated and may be budgeted and expended by
7 the Board of Tests for Alcohol and Drug Influence for operating
8 expenses of the Board. Expenditures from the funds shall be made
9 upon warrants issued by the State Treasurer against claims filed as
10 prescribed by law with the Director of the Office of Management and
11 Enterprise Services for approval and payment.

12 SECTION 2. This act shall become effective July 1, 2026.

13 SECTION 3. It being immediately necessary for the preservation
14 of the public peace, health or safety, an emergency is hereby
15 declared to exist, by reason whereof this act shall take effect and
16 be in full force from and after its passage and approval.

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1 Passed the House of Representatives the 12th day of March, 2026.

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3 _____
4 Presiding Officer of the House
5 of Representatives

6 Passed the Senate the _____ day of _____, 2026.

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9 Presiding Officer of the Senate